[redacted]

[redacted]

JUSTIFICATION & APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION
FAR 6.302-1(b)(4) and (c)(1)

1. **Contracting Activity:** US Army Engineer District, Corps of Engineers, PO Box 59, Louisville, KY 40201-0059

2. **Description of Action:** This Justification and Approval (J&A) is being prepared for the specification of and use of brand name equipment, Monaco Enterprises Incorporated (MEI) for the fire alarm radio, alarm transceiver equipment in the firm-fixed price construction contract for the maintenance and repair of the the existing Equipment Concentration Site (ECS), B-56767, on Fort Cavazos, TX. The Government will not purchase the fire monitoring system equipment directly, but rather will include a brand-name specifications requirement in the Design-Build construction solicitation for the prime contractor to purchase the Monaco fire alarm radio, alarm transceiver equipment. The solicitation will lead to a new firm-fixed-price (FFP) construction contract that will be funded with FY25 Operations & Maintenance Army Reserves (OMAR) funds.

3. **Description of the Supplies/Service:** The solicitation will include a sole-source brand requirement for a Monaco radio alarm transceiver that will need to be compatible with the current installation network. The estimated value of this J&A is approximately [redacted] The estimated value of the contract is [redacted], which includes the cost of the components covered in this J&A. This portion of the J&A is approximately [redacted] of the total estimated contract value.

4. **Authority Cited:** The statutory authority permitting acquisition of the requirement by other than full and open competition is 10 U.S.C. § 3204(a)(1) as implemented by FAR 6.302-1, only one responsible source and no other supplies or services will satisfy agency requirements. This authority is applicable to brand name acquisitions in accordance with FAR 6.302-1(b)(4) and FAR 6.302-1(c)(1).

5. **Reason for Authority Cited:**

   a. **Background:** This project will repair and construct an addition to an [redacted] part of the Equipment Concentration Site 64 (ECS-64), Maintenance Building 56767, that is in a failing condition, constructed on 23 July 2001, and not undergone any major infrastructure or system repairs, only limited maintenance and repair work has occurred. [redacted] The mechanical, plumbing and electrical systems are beyond serviceable life. The roofs and exterior walls leak. The present condition of the facility has extensive Life Safety issues and inadequate power and cooling which has a negative impact on the operations mission and the health of soldiers. The infrastructure is over 22 years old and the facility needs to have the major systems replaced in insure continuous mission operation. If not corrected in this project, temporary repairs will continue to be very costly and conditions in the facility will continue to degrade. Project includes repair of HVAC and Electrical systems, remove non-structural interior walls to right-size rooms and create open flexible workspace, restore inadequate and non-code compliant bathrooms, repair light fixtures with code compliant units, failed flooring, code compliant fire alarm and suppression system, repair electrical conduit

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distribution throughout the facility.

The current fire alarm reporting system used by Fort Cavazos fire station is manufactured by MEI. No other commercially available fire alarm radio, alarm transceiver equipment is compatible with the main Monaco receiver installed at the installation fire station. If another product is used, the system will not be able to send the point-specific information to the fire station that is required to properly respond to an alarm.

b. **Justification:** FAR 6.302-1(b)(4) permits use of the "Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements" if "the agency head has determined in accordance with the agency's standardization program that only specified makes and models of technical equipment and parts will satisfy the agency's needs for additional units or replacement items, and only one source is available" and FAR 6.302-1(c)(1) "Application for brand name descriptions" where a "portion of an acquisition that uses a brand-name description or other purchase description to specify a particular brand-name, product, or feature of a product, peculiar to one manufacturer." The current approved systems have been fully tested and verified to provide full combination fire alarm and mass notification capabilities that meet the requirements of UFC 3-600-01, UFC 4-21-01, and Fort Cavazos fire protection standards. [redacted] This system is primarily comprised of proprietary codes developed by that are licensed directly to the end users. MEI retains exclusive ownership of these codes and does not license to third parties to alter or add to their software or equipment. The fire alarm system installed in all facilities must be compatible with this receiver and Monaco equipment is the only products on the market that are compatible. If the Monaco equipment is not used, then the ECS's fire alarm radio, alarm transceiver equipment will not be able to communicate with the installation reporting system. This will jeopardize the safety of the building occupants since the fire department will not be able to assist in a timely manner if a fire arises. Monaco equipment is therefore necessary in order to ensure compatibility with the current installation-wide network. [redacted]

c. **Alternatives:** No alternatives were sought for reasons cited above.

d. **Impact:** For the ECS to connect to the existing installation fire, security and life safety system at Fort Cavazos, [redacted] Failure to establish adequate compatibility will result in delayed emergency response times and increase risk for failure of alarm systems. Attempting to integrate parts outside the current network poses unacceptable risks, because it would negatively affect the system's ability to maintain proper communication with Fort Cavazos DES, risking the lives of occupants and damage to surrounding facilities in the case of a fire.

6. **Efforts to Obtain Competition:** A Notice of Intent (NOI) was posted to SAM.gov on 09 March 2025. As of the current date, no responses have been received. If any responses are received, this J&A will be updated accordingly with a detailed analysis of responses.

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[redacted]

[redacted]

7. **Actions to Increase Competition:** Apart from the complete replacement of the current system in its entirety for the Fort Cavazos Fire Division, DES and all facilities on the installation, which is not a feasible solution, competition will be limited. No additional actions are planned to increase competition on follow-on procurements for the same or similar requirements for the reasons cited in paragraphs 5 and 6 above. This is a finite requirement with no future needs, and therefore there are no actions to increase future competition.

8. **Market Research:** Only MEI fire alarm radio, alarm transceiver equipment, which is comprised of proprietary software, will ensure seamless compatibility with the existing system. Market research was not performed in view of the reasons cited above. The market will be the same when this service is procured again.

9. **Interested Sources:** A technical review was not conducted. Monaco equipment is necessary for this action.

10. **Other Facts:** N/A

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[redacted]

[redacted]

11. **Technical Certification:** I certify that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

[redacted]
Project Engineer

12. **Requirements Certification:** I hereby determine that the supporting data under my cognizance, which are included in this justification, are accurate and complete to the best of my knowledge and belief.

[redacted]
Project Manager

13. **Fair and Reasonable Cost Determination/Contracting Officer Certification:** I hereby determine that the anticipated cost to the Government for this portion of the contract action, for which this J&A is related, will be fair and reasonable based on comparison with existing contract prices and/or established catalog prices for similar items. Based on the foregoing justification, I hereby approve the procurement of the Monaco fire alarm radio, alarm transceiver equipment for the estimated amount of [redacted] on an other than full and open competition basis pursuant to the authority of 10 U.S.C. § 3204(a)(1), as implemented by FAR 6.302-1(b)(4) and (c)(1), *Only one responsible source*.

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[redacted]
Contracting Officer

14. **Legal Review and Concurrence:** I have reviewed this J&A and find the justification adequate to support other than full and open competition.

[redacted]
Office of Counsel

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